

25CHCV03408 25CHCV03408

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-06-24

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Case Number: 25CHCV03408 Hearing Date: June 24, 2026 Dept: F47

Dept. F47

Date: 6/24/26

TRIAL DATE: 12/6/27

Case #25CHCV03408

MOTION TO BE

RELIEVED AS COUNSEL

Motion filed on 3/17/26.

MOVING ATTORNEY: Matthew Treybig

CLIENT: Plaintiff David Tessier

RELIEF REQUESTED: An order relieving Matthew

Treybig as counsel for Plaintiff David Tessier in this action.

RULING:

On 3/17/26, attorney Matthew Treybig filed and served the

instant motion to be relieved as counsel for Plaintiff David Tessier

(Plaintiff) in this action due to a breakdown in the attorney-client

relationship. The motion was originally

scheduled for hearing on 5/20/26. Due to

issues with the service of the motion and the filing of the declaration of

attorney Michael Jahangani on 5/19/26 in response to this Court's tentative

ruling, the hearing on the motion was continued to 6/24/26. (See 5/20/26 Minute Order).

With regard to service of the motion on Plaintiff, the declaration

filed in support of the motion indicates that the client's address was

confirmed by mail, return receipt requested.

However, the proofs of service attached to the motion documents only

indicate service by regular U.S. mail and no signed return receipt has been

filed. The declaration of attorney

Jahangani filed on 5/19/26, states that on 3/17/26, his office served the

motion documents on Plaintiff via U.S. Mail, including service by certified

mail/return receipt requested to Plaintiff's last known address. (See Jahangani Decl. ¶3). Attorney Jahangani then states that

"Plaintiff's address was confirmed prior to service and corresponds with the

address used throughout this litigation."

(Id. ¶4). However,

attorney Jahangani fails to indicate how or when Plaintiff's address was

confirmed prior to service (e.g. by telephone, by conversation, by other

means). (See Treybig Decl. No.3.b.(1));

CRC 3.1362(d)(1). Attorney Jahangani

goes on to state that “[a]ccording to USPS tracking information, the mailing

sent to Plaintiff remains associated with delivery activity and confirms that

the motion papers were transmitted to Plaintiff’s address of record.” (See Jahangani Decl. ¶5, Ex.2 –

although the declaration refers to Ex.1, Ex.2 actually relates to the service

on Plaintiff whereas Ex.1 relates to service on defense counsel). However, Exhibit 2 merely shows that the

mailing arrived at two different USPS facilities on 3/18/26 and 3/19/26 and was

in transit to its destination. (Jahangani

Decl., Ex.2). There is still no signed

receipt showing that the motion documents were received by Plaintiff which is

how attorney Treybig’s declaration indicates that Plaintiff’s address was

confirmed. (See Treybig Decl.,

No.3.b.(1)(a)).

The Court is now satisfied that the motion was properly electronically

served on defense counsel as the proofs of service show that the motion

documents were emailed to email addresses set forth in documents filed by

defense counsel. (See 1/14/26

Stipulated Protective Order).

CONCLUSION

Unless Plaintiff's counsel can present evidence of a signed return receipt which confirms receipt of the motion by Plaintiff at the address where the motion was mailed, the motion will be denied without prejudice. If evidence is presented that the motion was properly served on Plaintiff, the motion will be granted.